

**REQUEST FOR QUOTE - N4523A26Q1313**  
**LIQUID NITROGEN REFILL SUPPLY CONTRACT**  
**DEADLINE FOR QUOTE SUBMISSION**  
**Tuesday, 19 MAY 2026 at 1:00 PM Pacific Time (PT)**

1. This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with Federal Acquisition Regulation (FAR) Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.
2. Puget Sound Naval Shipyard and Intermediate Maintenance Facility (PSNS & IMF), located in Bremerton, WA, has a need for a **1-year LN2-IDIQ LIQUID NITROGEN REFILL SUPPLY CONTRACT**. The full requirements are listed in the attached Performance Work Statement (PWS).
3. The Solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2026-01 dated 13 March 2026, and Defense FAR Supplement (DFARS) Publication Notice 10 November 2025.
4. This RFQ **N4523A26Q1313** is being solicited utilizing full and open competition methods.
5. The associated North American Industry Classification (NAICS) code is 325120 – Industrial Gas Manufacturing, with a Business Size Standard of 1200. The Product Service Code (PSC) is 6830 Gases Compressed and liquefied.
6. The government intends to award a Firm Fixed Price Commercial Supply type contract.

The Vendor shall complete this pricing structure, section in its entirety and return with any other documentation, attachments or data as required by this solicitation. The contractor shall provide documentation, such as a previous invoice, proposal on company letterhead, contract or similar substantiate proposed pricing.

LIQUID NITROGEN IDIQ (Indefinite Delivery, Indefinite Quantity). 2026-2027 (One Year). Bremerton, Washington. US Navy Installation. Contractor and its personnel are required to comply with all applicable installation, access regulations and security.

7. CLIN Structure: The contract line-item numbers (CLINs) consist of the following:

Allowed per order:

Minimum: 5000 gallons  
Maximum: 150,000 Gallons

Government Minimum/ Maximum to order:

Minimum: 5000 Gallons  
Maximum: 150,000 Gallons

CLIN 0001: Liquid Nitrogen refill supply contract in accordance with attached Statement of Work attached for (1 YEAR IDIQ). LN2-IDIQ FOR 150,000 GALLONS (MAX) WITH UP TO 20 DELIVERIES. The Contractor shall provide Type 2, Grade A liquid Nitrogen per CID A-A-59155, "Nitrogen, High Purity, Special Purpose." Puget Sound Naval Shipyard – Controlled Industrial Area (CIA), Naval Base Kitsap – Bremerton, IMF – SUBASE Bangor, and IMF – Naval Station Everett.

Quantity: 150,000 gallons (max)

Unit of Measure: Per Gallon

Unit Price: \_\_\_\_\_

Total Price: \_\_\_\_\_

FOB: Destination  
FFP

CLIN 0002: Contract Data Requirements List (CDRL): See Exhibits - CDRLs 1- 4  
(NOT SEPARATELY PRICED)

Quantity: 4

Unit of Measure: Each

Unit Price: \_\_\_\_NA\_\_\_\_

Total Price: \_\_\_\_NA

FOB: Destination  
NSP

8. A full description of all requirements associated with this contract action are provided in the detailed Performance Work Statement (PWS) attachment 1.

9. Delivery shall be FOB Destination. The delivery location information is provided in the PWS.

10. Unless otherwise specified in the order, the supplier is responsible for the performance of all inspection requirements and quality control. The contractor shall include schedule information in their proposal.

11. Place of Performance: The work to be performed under this contract will be performed at Puget Sound Naval Shipyard and Intermediate Maintenance Facility (PSNS & IMF) needs liquid Nitrogen delivered from the Contractor's distribution centers to the Puget Sound Naval Shipyard – Controlled Industrial Area (CIA), Naval Base Kitsap – Bremerton, IMF – SUBASE Bangor, and IMF – Naval Station Everett.

12. Period of Performance: Base Period: 15 June 2026 Through 14 June 2027

13. Please submit your quote, along with the rest of the solicitation requirements in the current solicitation, no later than **19 MAY 2026 by 1:00 PM** Pacific Standard Time via email to Patrick Scott, Code 431 Contracting Office at [patrick.j.scott.civ@us.navy.mil](mailto:patrick.j.scott.civ@us.navy.mil) and Jacqueline Edgerton at [jacqueline.f.edgerton.civ@us.navy.mil](mailto:jacqueline.f.edgerton.civ@us.navy.mil). Quotes submitted after solicitation closing will not be considered.

14. Solicitation questions shall be submitted electronically via email to Patrick Scott, at [patrick.j.scott.civ@us.navy.mil](mailto:patrick.j.scott.civ@us.navy.mil) and Jacqueline Edgerton at [jacqueline.f.edgerton.civ@us.navy.mil](mailto:jacqueline.f.edgerton.civ@us.navy.mil) no later than **12 MAY 2026, Noon** Pacific Time.

NOTE: Late offers will be handled in accordance with FAR Clause 52.212-1 Instructions to Offerors - Commercial Items. No facsimile submissions will be accepted. Proposals are due by **19 MAY 2026 by 1:00 PM** Pacific Standard Time.

15. Point of Contact for small business questions or assistance is the Puget Sound Naval Shipyard and Intermediate Maintenance Facility Deputy for Small Business Ashley Jackson. Email: [ashley.n.hodge6.civ@us.navy.mil](mailto:ashley.n.hodge6.civ@us.navy.mil)

16. To be eligible for award, registration with the System for Award Management (SAM) must be current at the time of submitting proposals. This requirement is not waived. To register or apply please visit the SAM website at <http://www.sam.gov>. If you are not registered, you may request an application at (866) 606-8220 between the hours of 6 am – 8 pm (Eastern Time). The Contracting Officer will verify the Entity's CAGE code prior to the award, so please ensure you include it in your cover letter.

Please provide the following information,

**Name of Business:**

**Entity:**

**Primary Address:**

**DUNS No.:**

**CAGE Code:**

**Federal Tax ID:**

**Name of Contact:**

**Phone #:**

**Email Address:**

17. Offerors are notified that initial proposals which are incomplete may be eliminated from further consideration for award. The contractor must meet all requirements of this Request for Quote. Award will be made to the quote that is most advantageous to the Government in terms of meeting its requested delivery date and specifications, in accordance with 52.212-2, Evaluation – Commercial Items.

18. In accordance with 52.212-1 Instructions to Offerors – Commercial Products and Commercial Services Addendum Instructions and Submittal Requirements for Each Factor, Offerors shall provide the following information with the quote:

A. An official quote with the RFQ number **N4523A26Q1312**, Company Name and Address, Point of Contact, and CAGE Code on company letterheads must be submitted, along with any technical information.

B. The CLIN pricing must be completed, and all attachments must be completed and submitted.

C. Include statements specifying the extent of agreement with all terms, conditions and provisions included in the RFQ. Quotes that take exception to the terms and conditions of the RFQ may not be excluded from consideration. Ensure this is not in your email, but a part of your official proposal document.

D. Include pricing data, such as published pricing or invoices for similar or same services provided to other commercial sources, other than government customers

19. The Following Checked FAR and DFARS Clauses Are Applicable to This Purchase by Reference and By Full Text. The Full Text of The Clauses/Provisions from The FAR and DFARS Can Be Accessed Via the Internet Using the Following Web -Site Addresses:

FAR - <https://acquisition.gov/far/index.html>

DFARS - [www.acq.osd.mil/dpap/dars/dfarspgi/current/](http://www.acq.osd.mil/dpap/dars/dfarspgi/current/)

20. Method of Payment: DFARS Clause 252.232-7006, Wide Area Workflow Payment Instructions, and incorporating DFARS Clause 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

## 21. CLAUSES INCORPORATED BY REFERENCE:

FAR 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023)

FAR 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017)

FAR 52.204-13 System for Award Management Maintenance (Oct 2018)

FAR 52.204-19 Incorporation by Reference of Representations and Certifications (Dec 2014)

FAR 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015)

FAR 52.212-4 Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Alternate I )(Nov 2023)

FAR 52.222-3 Convict Labor (June 2003)

FAR 52.222-50 Combating Trafficking in Persons (Oct 2025)

FAR 52.222-50 Combating Trafficking in Persons. (Deviation 2026-O0038) (Alternate I)

FAR 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022)

FAR 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)

FAR 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)

FAR 52.223-23 Sustainable Products and Services (May 2024)

FAR 52.226-7 Drug-Free Workplace (May 2024)

FAR 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024)

FAR 52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)

FAR 52.232-33 Payment by Electronic Funds Transfer-System for Award Management (OCT 2018)

FAR 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

FAR 52.233-3 Protest after Award (Aug 1996)

FAR 52.233-4 Applicable Law for Breach of Contract Claim (OCT 2004)

FAR 52.240-90 Security Prohibitions and Exclusions Representations and Certifications.

FAR 52.244-6 Subcontracts for Commercial Products and Commercial Services (Oct 2025)

FAR 52.247-34 F.o.b. Destination (Nov 1991)

DFARS 252.201-7000 Contracting Officer's Representative (Dec 1991)

DFARS 252.203-7000 Requirements Relating to Compensation of Former DoD Officials (Sept 2011)

DFARS 252.203-7002 Requirement to Inform Employees of Whistleblower Rights (Dec 2022)  
 DFARS 252.204-7003 Control of Government Personnel Work Product (Apr 1992)  
 DFARS 252.204-7009 Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information (Jan 2023)  
 DFARS 252.204-7012 Safeguarding Covered Defense Information & Cyber Incident Reporting (May 2024)  
 DFARS 252.204-7015 Notice of Authorized Disclosure of Information for Litigation Support (Jan 2023)  
 DFARS 252.204-7018 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services (Jan 2023)  
 DFARS 252.204-7020 NIST SP 800-171 DoD Assessment Requirements (Nov 2023)  
 DFARS 252.204-7024 Notice on the Use of the Supplier Performance Risk System (Mar 2023)  
 DFARS 252.223-7008 PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)  
 DFARS 252.225-7048 – Export –Controlled Items (Jun 2013)  
 DFARS 252.225-7060 Prohibition On Certain Procurements From The Xinjiang Uyghur Autonomous Region (JUN 2023)  
 DFARS 252.232-7003 Electronic Submission of Payment Requests and Receiving Reports (Dec 2018)  
 DFARS 252.232-7010 Levies on Contract Payments (Dec 2006)  
 DFARS 252.237-7010 Prohibition on Interrogation of Detainees by Contractor Personnel (Jan 2023)  
 DFARS 252.243-7001 Pricing of Contract Modifications. (Dec 1991)  
 DFARS 252.244-7000 – Subcontracts for Commercial Products or Commercial Services. (Jan 2023)  
 DFARS 252.247-7023 Transportation Of Supplies By Sea—Basic (Oct 2024)

#### CLAUSES INCORPORATED BY FULL TEXT:

FAR 52.222-41 Service Contract Labor Standards (AUG 2018)

ADDENDUM to 52.222-41 Department of Labor Wage Determination 2015-5525 Rev 29 Dated December 3, 2025, incorporated into this award is available at <http://sam.gov>

FAR 52.222.42 Statement of Equivalent Rates for Federal Hires (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 OR 5 332

This statement is for Information Only: It is not a Wage Determination.

#### 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR - <https://acquisition.gov/far/index.html>

and

DFARS -[www.acq.osd.mil/dpap/dars/dfarspgi/current/](http://www.acq.osd.mil/dpap/dars/dfarspgi/current/)

(End of clause)

## 252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area Workflow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

### **INVOICE 2N1**

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i> |
|---------------------------|-----------------------------------|
| Pay Official DoDAAC       | N50082                            |
| Issue By DoDAAC           | N4523A                            |
| Admin DoDAAC**            | N4523A                            |
| Inspect By DoDAAC         | N4523A                            |
| Ship To Code              | N4523A                            |
| Ship From Code            | N/A                               |
| Mark For Code             | N/A                               |
| Service Approver (DoDAAC) | N4523A                            |
| Service Acceptor (DoDAAC) | N4523A                            |
| Accept at Other DoDAAC    | N/A                               |
| LPO DoDAAC                | N4523A                            |
| DCAA Auditor DoDAAC       | N/A                               |
| Other DoDAAC(s)           | N/A                               |

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

The Contracting Officer's Representative (COR) is the designated invoice inspector/acceptor.

WAWF email notifications. The Contractor shall enter the email address identified below in the "Send Additional Email Notifications" field of WAWF once a document is submitted in the system.

Contract Specialist/Purchasing Agent: Patrick Scott  
[patrick.j.scott.civ@us.navy.mil](mailto:patrick.j.scott.civ@us.navy.mil)

Contract Officer: Jacqueline Edgerton  
[jacqueline.f.edgerton.civ@us.navy.mil](mailto:jacqueline.f.edgerton.civ@us.navy.mil)

Contracting Officer Representative: TBD at Award

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

[Psns.costaccounting.c610.2@us.navy.mil](mailto:Psns.costaccounting.c610.2@us.navy.mil)

[psnsaskaccountspayable@navy.mil](mailto:psnsaskaccountspayable@navy.mil)

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

ADDITIONAL WAWF INSTRUCTIONS To ensure prompt payment and accountability the Contractor shall input the following Agency Accounting ID (AAI) in the Line-Item Information section on all WAWF Receiving Reports and Invoices:

AAI - 056521 or STARS AAA from the AAA block for this document.

Ensure the routing table contained in Clause 252.232-7006 is followed exactly when submitting invoices. Specifically, the WAWF System will allow the submittal of invoices without mandatory completion of the "Inspect By" DODAAC. Failure to follow the routing table and insert the correct "Inspect By" DODAAC may result in immediate rejection of invoice and require resubmittal without any accrual of interest.

52.216-18 Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 15 June 2026 through 14 June 2027.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or



(3) If sent electronically, the Government either—

- (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
  - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

#### 52.216-19 Order Limitations (Oct 1995)

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than 5000 Gallons, the Government is not obligated to purchase, nor is the Contractor obligated to furnish those supplies or services under the contract.
- (b) Maximum order. The Contractor is not obligated to honor-
  - (1) Any order for a single item in excess of 5000 gallons.
  - (2) Any order for a combination of items in excess of 150,000 gallons ; or
  - (3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 5 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

#### 52.216-22 Indefinite Quantity (Feb 2026) (deviation 2026 – 00038)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the

"maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 14 June 2027.

(End of clause)

52.219-14 Limitations on Subcontracting. (Deviation 2026-O0038) 2026-02

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

☒ By the end of the base term of the contract and then by the end of each subsequent option period;  
or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.223-3 Hazardous Material Identification and Safety Data. (Deviation 2026-O0038) (FEB 2026)

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

| Material (if none, insert <i>none</i> ) | Identification # |
|-----------------------------------------|------------------|
|                                         |                  |
|                                         |                  |
|                                         |                  |

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

C-202-H001 Additional Definitions—Basic (NAVSEA) (Oct 2018)

(a) Department - means the Department of the Navy.

(b) Commander, Naval Sea Systems Command - means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.

(c) References to The Federal Acquisition Regulation (FAR) - All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.

(d) National Stock Numbers - Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification

Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven-digit non-significant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

## C-204-H001 Use of Navy Support Contractors for Official Contract Files (NAVSEA) (Oct 2018)

(a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:

(1) The support contractor does not disclose any information.

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the contractor may have, it is a third-party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.

(c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

## C-211-H018 Approval by The Government (NAVSEA) (Jan 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

## C-242-H002 Post Award Meeting (NAVSEA) (Oct 2018)

- (a) A post-award meeting with the successful offeror will be conducted within [3] days after award of the contract. The meeting will be held at the address below: Location/Address: **via teleconference**
- (b) The contractor will be given [2] working days' notice prior to the date of the meeting by the Contracting Officer.
- (c) The requirement for a post-award meeting shall in no event constitute grounds for excusable delay by the contractor in performance of any provisions in the contract.
- (d) The post-award meeting will include, but is not limited to, the establishment of work level points of contact, determining the administration strategy, roles and responsibilities, and ensure prompt payment and close out. Specific topics shall be mutually agreed to prior to the meeting.

(End of Text)

C-247-H001 Permits and Responsibilities (NAVSEA) (Dec 2018)

The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and permits for complying with any applicable Federal, State, and Municipal laws, codes, and regulations for shipping and transportation including, but not limited to, any movement over public highways of overweight/over dimensional materials.

(End of Text)

D-211-H002 Marking of Reports (NAVSEA) (Oct 2018)

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report:

- (1) name and business address of the Contractor
- (2) contract number
- (3) sponsor:

Name of Individual Sponsor\_\_\_\_\_

Name of Requiring Activity\_\_\_\_\_

City and State \_\_\_\_\_

(End of Text)

G-232-H002 Payment Instructions (NAVSEA) (Feb 2024)

Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) ([https://www.acq.osd.mil/dpap/dars/pgi/pgi\\_htm/current/PGI204\\_71.htm#payment\\_instructions](https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions)).

(End of Text)

G-232-H005 Supplemental Instructions Regarding Invoicing (NAVSEA) (Jan 2019)

(a) For other than firm fixed priced contract line-item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line-item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

(End of Text)

G-242-H001 Government Contract Administration Points-Of-Contract and Responsibilities (NAVSEA) (Oct 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract, or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: Jacqueline Edgerton

Address: 1400 Farragut Avenue, Mail Stop 2026  
Bremerton, WA 98314-2026

Phone: (360)477-2589

E-mail: [jacqueline.f.edgerton.civ@us.navy.mil](mailto:jacqueline.f.edgerton.civ@us.navy.mil)



(ii) The Contract Specialist is:

Name: Patrick Scott

Address: 1400 Farragut Avenue, Mail Stop 2026

Bremerton, WA 98314-2026

Phone: (564)546-2763

E-mail: [patrick.j.scott.civ@us.navy.mil](mailto:patrick.j.scott.civ@us.navy.mil)

(iii) The Administrative Contracting Officer (ACO) is:

Name: Jacqueline Edgerton

Address: 1400 Farragut Avenue, Mail Stop 2026

Phone: (360)477-2589

Bremerton, WA 98314-2026

E-mail: [jacqueline.f.edgerton.civ@us.navy.mil](mailto:jacqueline.f.edgerton.civ@us.navy.mil)

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (CORs) are:

Primary COR: TBD

Alternate COR: TBD

(End of Text)

#### G-242-H002 Hours of Operation and Holiday Schedule (NAVSEA) (Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the Puget Sound Naval Shipyard and Intermediate Maintenance Facility. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U.S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link:  
<https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another

company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(End of Text)

#### H-209-H003 Required Disclosure of Organizational Conflict of Interest (NAVSEA) (NOV 2022)

(a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.

(b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).

(c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.

(d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.

- (e) If the Contractor fails to take action required by this requirement or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.
- (f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information, or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (j) Compliance with this requirement is a material requirement of this contract.

(End of Text)

### 23. Provisions Incorporated by Reference:

FAR 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (JAN 2017)  
 FAR 52.204-7 System for Award Management (Nov 2024)  
 FAR 52.212-1 Instructions to Offerors-Commercial Items (Sept 2023)  
 DFARS 252.203-7005 Representation Relating to Compensation of Former DoD Officials (SEP 2022)  
 DFARS 252.204-7008 Compliance with Safeguarding Covered Defense Information Controls (Oct 2016)  
 DFARS 252.204-7016 Covered Defense Telecommunications Equipment or Services—Representation (Dec 2019)  
 DFARS 252.204-7019 Notice of NIST SP 800-171 DoD Assessment Requirements. (Nov 2023)  
 DFARS 252.204-7024 Notice on the Use of the Supplier Performance Risk System (Mar 2023)  
 DFARS 252.225-7055 Representation Regarding Business Operations with The Maduro Regime (MAY 2022)  
 DFARS 252.225-7056 Prohibition Regarding Business Operations with The Maduro Regime (JAN 2023)  
 DFARS 252.225-7059 Prohibition on Certain Procurements from The Xinjiang Uyghur Autonomous Region—Representation (JUN 2023)

Provisions by full text:

#### 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES—REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at [252.204-7016](#), Covered Defense Telecommunications Equipment or Services—Representation, that it “does not provide covered defense telecommunications equipment or

services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.”

(a) *Definitions.* “Covered defense telecommunications equipment or services,” “covered mission,” “critical technology,” and “substantial or essential component,” as used in this provision, have the meanings given in the [252.204-7018](#) clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at [252.204-7016](#), Covered Defense Telecommunications Equipment or Services—Representation, that it “does” provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it “will provide covered defense telecommunications equipment or services,” the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

52.212-2 Evaluation--Commercial Products And Commercial Services (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

(i) Price; and

(ii) Technical Acceptability

Acceptable: An acceptable quote conforms to the requirements stated in the combined synopsis/solicitation and PWS; and provides all the required documentation, in its entirety. See #19 for submission requirements

Unacceptable: The proposal does not conform to the requirements stated in the combined synopsis/solicitation and PWS and does not include all the items required or incomplete documentation. Offerors receiving an unacceptable rating for its technical factor will not receive further consideration

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far>

DFAR Clauses: <https://www.acquisition.gov/dfars>

(End of provision)

L-204-H003 NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILE (NAVSEA) (Apr 2019)

(a) NAVSEA may use a contractor to manage official contract files hereinafter referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

(1) The support contractor not disclose any information.

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files.

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the offeror may have, it is a third-party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the government.

(End of Text)

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT(S) OF INTEREST (NAVSEA) (Apr 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to N4523A, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s).

Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict-of-interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of Text)

## L-215-H007 SUBMISSION OF QUESTIONS BY OFFERORS—ALTERNATE I (Nov 2021)

(a) Offerors may submit questions or request clarification of any aspect of this solicitation. It is the Offeror's responsibility to bring to the attention of the Contracting Officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the PWS and other solicitation documents attached hereto or incorporated by reference. Each question should identify solicitation number, document, page number, paragraph number or other identifier relating to the question. Questions without this information may not be answered. Acknowledgment of questions received will not be made.

(b) The deadline for receipt of questions is **12 MAY 2026**. Although every effort will be made, the Government makes no guarantee that questions received after the date above will be answered.

(c) All questions shall be submitted via email to the point of contact listed for this solicitation. Responses will be posted to the SAM web page at <https://www.SAM.gov>.

(End of Text)

LIST OF ATTACHMENTS

| <b>Attachments</b> | <b>Title</b>                       |
|--------------------|------------------------------------|
| 1. Security        | Base security requirements         |
| 2. PWS/SOW         | Statement of Work                  |
|                    |                                    |
| <b>Exhibits</b>    | <b>Title</b>                       |
| 1. CDRL A001       | LN2 CERTIFICATE OF COMPLIANCE      |
| 2. CDRL A002       | LN2 CERTIFICATE OF ANALYSIS        |
| 3. CDRL A003       | Qualified Personnel Certifications |
| 4. CDRL A004       | Contractor Owned Equipment Report  |
| 5. ELIN Table      | PRICING SCHEDULE                   |

Contractor signature confirms the solicitation and PWS were read in its entirety below.

Contractor Signature: \_\_\_\_\_

DATE: \_\_\_\_\_